DETAINED

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UNITED STATES DEPARTMENT OF JUSTICE
EXECUTIVE OFFICE FOR IMMIGRATION REVIEW
BOARD OF IMMIGRATION APPEALS
Falls Church, Virginia

In the Matter of:

[RESPONDENT NAME],

Respondent.

File No.: A[A-NUMBER]

In Removal Proceedings

RESPONDENT'S BRIEF ON APPEAL

[COUNSEL NAME], Esq.
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STATEMENT OF FACTS AND PROCEDURAL HISTORY

This brief is a synthetic layout sample. It contains no real facts, record citations, or authorities. Every bracketed item is a placeholder that a real filing would replace. The Respondent [adopts the facts in the decision of the Immigration Judge] except as stated below. [Respondent] entered the United States on [DATE] and was placed in removal proceedings by a Notice to Appear that charged removability under [SECTION] of the Act. (IJ Dec. at [PAGE]; Exh. 1.)

At the master calendar hearing on [DATE], the Respondent conceded [ALLEGATION] and declined to concede [CHARGE]. The Immigration Judge set a schedule for the filing of an application for relief. The Respondent timely filed an application for [RELIEF] and supporting documents, including [DOCUMENT] and [DOCUMENT]. (Exh. 2 at [PAGE].)

The Immigration Judge held an individual hearing on [DATE]. The Respondent testified about [SUBJECT], and two witnesses testified about [SUBJECT]. The Department of Homeland Security offered [EXHIBIT], which the Respondent objected to on [GROUND]. The Immigration Judge admitted the exhibit over objection. (Tr. at [PAGE].)

In a decision dated [DATE], the Immigration Judge denied the application and ordered the Respondent removed to [COUNTRY]. The Immigration Judge found that [FINDING], and did not reach [ISSUE]. (IJ Dec. at [PAGE].) The Respondent filed a timely Notice of Appeal (Form EOIR-26) on [DATE]. The Board set a briefing schedule on [DATE], and this brief follows.

The Respondent [is / is not] detained. The Respondent asks the Board to [REVERSE / REMAND / TERMINATE] for the reasons set out below.

STATEMENT OF THE ISSUES

1. Whether the Immigration Judge erred in finding that [ISSUE], where the record shows [FACT].
2. Whether the Immigration Judge erred in weighing [EVIDENCE] against the Respondent, where the decision does not address [GAP].

3. Whether, in the alternative, the Immigration Judge should have granted [RELIEF] as a matter of discretion after considering [FACTOR].

STANDARD OF REVIEW

The Board reviews the findings of fact of the Immigration Judge, including credibility findings, under a clearly erroneous standard. 8 C.F.R. § 1003.1(d)(3)(i). The Board reviews all other issues, including questions of law, judgment, and discretion, and the application of established precedent to undisputed facts, de novo. 8 C.F.R. § 1003.1(d)(3)(ii). [Placeholder: confirm the current text of 8 C.F.R. § 1003.1(d)(3) before filing.]

SUMMARY OF ARGUMENT

The Immigration Judge treated [FACT] as decisive without weighing it against [FACT]. That error affects both the eligibility finding and the discretionary finding. The record, read as a whole, supports the Respondent on [ISSUE]. The decision should be reversed on that ground. If the Board does not reverse, it should remand so the Immigration Judge can address [GAP] in the first instance.

ARGUMENT

I. The Immigration Judge Erred in Finding That [ISSUE]

The Immigration Judge found that [FINDING]. (IJ Dec. at [PAGE].) That finding rests on [BASIS]. Two features of the record cut against it.

First, the evidence on [TOPIC] is consistent across three sources: the Respondent's testimony, the declaration of [WITNESS], and [DOCUMENT]. (Exh. 2 at [PAGE]; Tr. at [PAGE]; Exh. 4 at [PAGE].) The decision does not explain why any of those sources is less reliable than [EXHIBIT]. Where an adjudicator relies on one document over consistent testimony without explaining the choice, the finding is not supported by the record. *See* [CITATION PLACEHOLDER].

Second, the decision treats the timing of [EVENT] as showing [INFERENCE]. The timing is equally consistent with [ALTERNATIVE EXPLANATION], which the Respondent raised at the hearing. (Tr. at [PAGE].) An inference that the record supports equally well in either direction cannot carry the burden on its own. [PLACEHOLDER: state the governing standard and cite the controlling Board or circuit decision.]

A. The Evidence on [TOPIC] Was Not Weighed as a Whole

The decision lists the Respondent's evidence and then sets it aside in a single paragraph. (IJ Dec. at [PAGE].) It does not discuss the declaration of [WITNESS], which corroborates [FACT] in specific detail. The Board has held that an adjudicator must consider all of the evidence of record, including evidence that cuts in the applicant's favor. [CITATION PLACEHOLDER: *Matter of* ____, [VOL.] I&N Dec. [PAGE] (BIA [YEAR]).]

A reviewing body cannot tell from the decision whether the omitted evidence was considered and rejected or not considered at all. That uncertainty matters here because the omitted evidence bears directly on [ELEMENT]. The Board should either find that the error was harmless, which the Department cannot show on this record, or reverse.

B. The Respondent Testified Credibly and the Decision Does Not Find Otherwise

The Immigration Judge did not make an adverse credibility finding under [STATUTE PLACEHOLDER]. The decision does not identify any inconsistency between the Respondent's testimony and the written record, and it does not describe the testimony as implausible. (IJ Dec. at [PAGE].) Instead, the decision says the testimony was "[QUOTE]," a statement that describes the content of the testimony and does not find it incredible. (IJ Dec. at [PAGE].)

Where the adjudicator does not make a credibility finding, the testimony must be taken as true unless the record shows otherwise. [CITATION PLACEHOLDER.] Because the record contains no contrary evidence on [FACT], the Board should accept the Respondent's account of [FACT] for purposes of this appeal.

II. In the Alternative, the Immigration Judge Should Have Granted Relief as a Matter of Discretion

If the Board concludes that the Respondent is not eligible on [ISSUE], the discretionary analysis still requires a remand. The Immigration Judge stated that [FACTOR] weighs against relief, but did not weigh the positive factors. Those factors include [FACTOR], [FACTOR], and [FACTOR], each supported by exhibits. (Exh. 5 at [PAGE]; Exh. 6 at [PAGE]; Exh. 7 at [PAGE].)

A. The Positive Equities Are Documented and Uncontested

The Department did not dispute [FACTOR] at the hearing. (Tr. at [PAGE].) Where a factor is documented and uncontested, a decision that does not mention it has not weighed the totality of the circumstances. The Board has recognized that the favorable and unfavorable factors must both be considered. [CITATION PLACEHOLDER.]

B. The Adverse Factor Is Limited and Has Been Addressed

The adverse factor the decision relies on is [FACTOR]. That factor is limited in time and scope. It arose on [DATE], and the Respondent has since [REHABILITATION OR CHANGE]. (Exh. 8 at [PAGE].) A single past event, weighed against a documented record of [FACTOR], does not support denial of relief as a matter of discretion without more. [PLACEHOLDER: cite the discretionary standard the Board applies to this form of relief.]

III. The Board Should Remand If It Does Not Reverse

If the Board does not reverse on either ground, the appropriate course is a remand. The Immigration Judge did not address [GAP] and did not make findings on [FACT], which are necessary to decide eligibility under [STATUTE]. (IJ Dec. at [PAGE].) Making those findings in the first instance on appeal would require the Board to weigh evidence that the Immigration Judge has not evaluated. Remand is the more appropriate course. *See* 8 C.F.R. § 1003.1(d)(3)(iv) [placeholder: confirm current paragraph text].

The Respondent also asks that the Immigration Judge be directed to hold a further hearing, at which the Respondent may present [EVIDENCE] that is not yet in the record. The Respondent will file a motion to remand on that basis if the Board so directs. [PLACEHOLDER: state whether new evidence is offered with this brief or by separate motion, per Practice Manual ch. 4.8.]

CONCLUSION

For these reasons, the Respondent respectfully asks the Board to reverse the decision of the Immigration Judge and [GRANT RELIEF / TERMINATE PROCEEDINGS]. In the alternative, the Respondent asks the Board to remand the record to the Immigration Judge for further proceedings consistent with this brief.

Dated: [DATE]

Respectfully submitted,

_____

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CERTIFICATE OF SERVICE

I certify that on [DATE OF SERVICE], I served a copy of the foregoing Respondent's Brief on Appeal, by first-class mail, on [DHS OFFICE], at [SERVICE ADDRESS].

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[PERSON SERVING]
[FIRM NAME], Counsel for Respondent